

**BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALOCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY, QUETTA**

PRC APPEAL NO. 12 / 2026

M/S Daavi Construction Company
Spinzar Plaza, Angle Road Quetta

.....Appellant

VERSUS

1. Government of Balochistan through its Chief Secretary Office at Civil Secretariat, Quetta
2. Chief Officer, Municipal Committee, Zhob
3. Chairman Complaint Redressal Committee, Baluchistan Local Government Board
4. M/S A&M Enterprises & General Order Supplier through the Respondent No.2

.....Respondents

Quorum

1. Mr. Habib Ur Rehman Jamot.....Chairman PRC
2. Mr. Mubashir Ali khan (FCIPS).....Member PRC
3. Mr. Engr Junaid ShahMember PRC
4. Mr. Engr Muhammad Ayub NasirTechnical Member PRC
5. Mr. Abdul Hayee AdvocatePrivate Member PRC

DECISION

Dated 11-02-2026

1. By leave of this Committee, the Appellant, being aggrieved by the impugned Technical Evaluation Report dated 26-12-2025 pertaining to TSE No. 252611911671, of the project titled "Procurement of Vehicles and Machinery for Municipal Committee District Zhob", with an estimated cost of Rs. 15,000,000/-, has filed the instant Appeal under Rule 56-A of the Balochistan Public Procurement Rules, 2014.
2. It is contended by the Appellant that it possesses the requisite legal standing as a government contractor having Category C-3 license by the Pakistan Engineering Council (PEC) and being compliant with the applicable tax obligations. The procurement in question was initiated by Respondent No. 2 through a Notice Inviting Tenders (NIT) advertised in the print media and on the official BPPRA web portal ePPS on 17-12-2025, using the Single Stage Two Envelope bidding procedure. The Appellant, in conformity with the bidding schedule, tendered its proposal complete with all supporting documents and the mandatory bid security.
3. Following the evaluation of technical proposals, the Appellant's bid was determined to be non-responsive. The Appellant alleges that the stated ground for this determination, conveyed to him orally, was the failure to submit requisite SECP registration and ISO certification documents. In response, the Appellant maintains that he had submitted the SECP

Registration Certificate pertaining to his manufacturer, Millat Tractors, and that the technical evaluation committee of Respondent No. 2 failed to duly consider this documentation in its assessment.

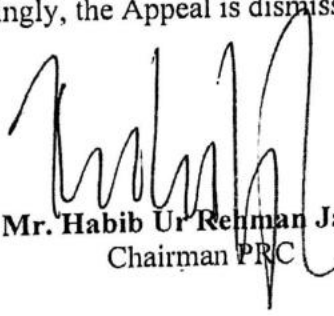
4. The Appellant further contends that the guidelines on common non-compliance issued by BPPRA explicitly prohibit procuring agencies from stipulating restrictive, irrelevant, or unnecessary documentation as qualifying conditions in the bidding documents. He asserts that Respondent No. 2, in contravention of these binding directives, wrongfully imposed ISO certification as a mandatory eligibility criterion.
5. Being aggrieved by the evaluation outcome, the Appellant invoked the grievance redressal mechanism under Rule 56 of the BPP Rules by approaching the Procuring Agency's Grievance Redressal Committee (GRC). The GRC, however, failed to discharge its statutory duty, remaining silent and not issuing or communicating any decision within the timeframe stipulated by law. Consequently, in the absence of a remedy, the Appellant was compelled to prefer the present Appeal before this Committee, seeking, inter alia, an interim order to restrain Respondent No. 2 from proceeding with the award of the contract.
6. Notwithstanding due service of the Appeal upon the Respondents, none of the Respondents appeared before the Committee nor was any written reply or statement of defense filed in response to the Appeal. The Committee has therefore proceeded to adjudicate the matter on the basis of the available record and the submissions of the Appellant.
7. Upon examination of the Appeal, the record of proceedings, the bidding documents and the applicable statutory framework under the BPP Rules, 2014, the Procurement Review Committee proceeds to record its findings.
8. The Committee notes that the Invitation for Bids explicitly stipulated the submission of SECP registration and ISO certification as mandatory eligibility requirements, which were essential for determining technical responsiveness. Moreover, the Rule 32 of the BPP Rules, provide a clear mechanism for bidders to challenge any perceived irregularities in the bidding documents before bid submission. Had the Appellant believed the ISO certification requirement to be restrictive or non-compliant with guidelines, he was obligated to raise a formal objection at least five days prior to the bid opening date. His failure to do so, and his subsequent attempt to challenge the requirement only after his bid was rejected, amounts to an impermissible afterthought that this Committee cannot entertain.
9. Pursuant to Rule 35(1) of the BPP Rules, 2014, which mandates that the bids shall be evaluated in the manner prescribed in the bidding documents, the eligibility criteria specified therein, including in this instance the submission of SECP registration and ISO certification are binding and determinative. A bid that lacks these mandatory requirements does not meet the threshold of technical responsiveness. The Committee holds that the as both the requirements of SECP registration and ISO certification were precisely stated as eligibility determination factors in the bidding document, the Appellant's non-submission of either of the stipulated certificates represents a failure to meet a mandatory condition of eligibility, rendering its bid essentially non-compliant and cannot be remedied after bid opening.
10. Pursuant to Rule 35(1) of the BPP Rules, 2014, which mandates that bids shall be evaluated in the manner prescribed in the bidding documents, The eligibility criteria prescribed here clearly includes SECP registration and ISO certification, hence their fulfillment is binding and determinative. A bid that lacks any of these mandatory requirements does not meet the

threshold of responsiveness. The Committee holds that the Appellant's non-submission of any of the stipulated certificates constitutes a failure to meet a mandatory condition. This defect is fundamental, rendering the bid essentially non-compliant with the uncontested criteria and therefore incapable of remedy after bid opening. For the sake of completeness, the Committee further observes that even if the Appellant's submission of its manufacturer's SECP certificate were to be deemed compliant, the failure to submit ISO certification alone constitutes a separate and sufficient ground for declaring the bid non-responsive, as each mandatory criterion must be satisfied independently.

11. Concerning the inaction of the Grievance Redressal Committee (GRC), while this Committee denounces the failure to issue a timely decision as required by law, this procedural omission, standing alone, does not vitiate a procurement decision that is otherwise substantively lawful and compliant with the governing rules.

DECISION

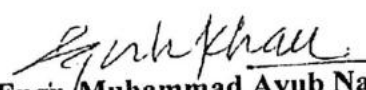
12. For the reasons detailed hereinabove, this Committee finds no illegality, irregularity, or violation of the Balochistan Public Procurement Act or Rules in the impugned Technical Evaluation Report. Accordingly, the Appeal is dismissed.


Mr. Habib Ur Rehman Jamot
Chairman PRC

11/12/2026


Mubashir Ali Khan (FCIPS)
Member

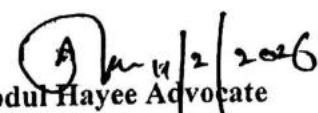
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